

Avneesh Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 May 2022 · WRIT - C No. - 9006 of 2022 · **Writ disposed; Para 6.5 objection; coercive action stayed eight weeks**

HEADNOTE

Writ to quash a provisional assessment notice and to renew a temporary connection disposed of without any opinion on merits. The consumer may file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within four weeks; if filed, it shall be decided after hearing within the next four weeks. No coercive action on the demand for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Avneesh Kumar ran a sugarcane crusher (Ganna Perai Kohu) on temporary connection No. 712103309476, load 8 kW (10 H.P.). He applied on 10 February 2022 to renew it from 12 February to 30 May 2022. Respondent no. 3 issued a provisional assessment notice dated 21 February 2022. Kumar sought a writ to quash the notice and to compel renewal and restoration of supply. The licensee's counsel stated that an objection to the demand could be filed and decided in accordance with law within a fixed time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Objection to a provisional assessment demand under Para 6.5

HOLDING

A writ challenging a provisional assessment notice and seeking renewal of a temporary connection is disposed of without any opinion on merits, with liberty to the consumer to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within four weeks, along with a certified copy of the order. If the objection is filed in time, respondent no. 3 shall decide it in accordance with law within the next four weeks after a reasonable hearing. No coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ for certiorari against the provisional assessment notice and for renewal of the temporary connection was disposed of without a merits finding, leaving the consumer to an objection under Para 6.5. ¶ 4

clause-6.5-statutory-remedy-disputed-bill The licensee's demand under the provisional assessment notice dated 21.02.2022 was left to a Para 6.5 objection before respondent no. 3, to be decided after hearing within four weeks of a timely filing. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE PROVISIONAL ASSESSMENT NOTICE DATED 21.02.2022, AND WHETHER TEMPORARY CONNECTION NO. 712103309476 MUST BE RENEWED AND SUPPLY RESTORED.

The Court expressed no opinion on merits and left both prayers to the Para 6.5 objection. ¶ 4